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The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

අංක 2331/18 – 2023 මැයි මස 09 වැනි අඟහරුවාදා – 2023.05.09
No. 2331/18 – TUESDAY, MAY 09, 2023

(Published by Authority)

PART I: SECTION (I) – GENERAL

Government Notifications

My No.: IR/COM/04/2020/208.

THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)

Order under Section 4(1)

WHEREAS an Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

Mr. L. Chethuka Samantha, Devaniya Watta, Baduruppa Road, Gammadda, Midigama, Ahangama.
of the one part

and

1. Sri Lanka Transport Board, No. 200, Kirula Road, Colombo - 05.
2. Sri Lanka Transport Board, Koggala Depot, Habaraduwa.

of the other part

NOW THEREFORE I, Manusha Nanayakkara, Minister of Labour and Foreign Employment do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes-Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. Siri Singappuli of No. 117, Singhapura Road, Pelawatte, Battaramulla to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

MANUSHA NANAYAKKARA,
Minister of Labour and Foreign Employment.

Colombo.
23rd April, 2023.



1A – G 039437 – 14 (05/2023)

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My No.: IR/COM/04/2020/208.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
 (1956 REVISED EDITION)**

Mr. L. Chethuka Samantha, Devaniya Watta, Baduruppa Road, Gammadda, Midigama, Ahangama.
of the one part

and

1. Sri Lanka Transport Board, No. 200, Kirula Road, Colombo - 05.
2. Sri Lanka Transport Board, Koggala Depot, Habaraduwa.

of the other part

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is -

Whether Mr. L. Chethuka Samantha who had been working as an Electrician - III of the Koggala Depot of the Sri Lanka Transport Board and was terminated from service following the disciplinary inquiry conducted on an incident that had occurred on 09.02.2014 had been caused injustice by the termination as he had been acquitted and discharged from the case held at the Magistrate Court on the same issue, and if so, to what relief he is entitled.

B. K. PRABATH CHANDRAKEERTHI,
 Commissioner General of Labour.

Dated at the Office of the Commissioner General of Labour,
 Colombo, on this 18th day of April, 2023.

EOG 05 - 0040

My No.: IR/COM/03/2022/35.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
 (1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS an Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

Mr. Wasantha Wijesekara, Attorney-at-law, (on behalf of Mr. M. C. A. Artault Chrystelle, Mr. R. Rohith Chaudhary,
 Mr. Rajesh K. Narang), 655, Subhuthi Mawatha, Subhuthipura, Battaramulla.

of the one part

and

Sri Lankan Airlines Limited, Airline Centre, Bandaranaike International Airport, Katunayake.

of the other part

NOW THEREFORE I, Manusha Nanayakkara, Minister of Labour and Foreign Employment do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of

Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes-Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. R. Navodayam, Attorney-at-law, of 411/16, Galle Road, Bambalapitiya, Colombo 04 to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

MANUSHA NANAYAKKARA,
Minister of Labour and Foreign Employment.

Colombo.
23rd April, 2023.

My No.: IR/COM/03/2022/35.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. Wasantha Wijesekara, Attorney-at-law, (on behalf of Mr. M. C. A. Artault Chrystelle, Mr. R. Rohith Chaudhary,
Mr. Rajesh K. Narang), 655, Subhuthi Mawatha, Subhuthipura, Battaramulla.

of the one part

and

Sri Lankan Airlines Limited, Airline Centre, Bandaranaike International Airport, Katunayake.

of the other part

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is –

Whether Mr. M. C. A. Artault Chrystelle, Mr. R. Rohith Chaudhary, Mr. Rajesh K. Narang who joined the Sri Lankan Airlines as Captains under a five year Service Agreement being sent on compulsory leave from 01.04.2020 to 13.01.2021 is legal in terms of the provisions of the Industrial Relations Act, whether they are entitled for the salaries and all allowances mentioned in the service period for the period in which they were on compulsory leave and whether they had been caused injustice by not getting them, and if so, to what relief they are entitled.

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Dated at the Office of the Commissioner General of Labour,
Colombo, on this 04th day of April, 2023.

EOG 05 – 0041